

Inspection of Documents and Levy of Fees Rules

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State of Tamilnadu- Act

Inspection of Documents and Levy of Fees Rules

TAMILNADU

India

Inspection of Documents and Levy of Fees Rules

Act 653 of 1961

Published on 2 June 1971

Commenced on 2 June 1971

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Inspection of Documents and Levy of Fees Rules

Published vide Notification No. G.O. Ms. No. 2322, Revenue, dated 2nd June 1971 - SRO No. A-653 of 1961

Original Rules published in Part V of the Fort St. George Gazette, dated 21st June, 1961 (Page 670).

G.O. Ms. No. 2322, Revenue, dated 2nd June 1971 - SRO No. A-653 of 1961. - In exercise of the powers conferred by clause (iv) of sub-section (2) of section 116 of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959), the Governor of Tamil Nadu hereby makes the following Rules, namely:-

1.
These Rules may be called the Inspection of Documents and the Levy of Fees Rules.

- 2.

[

[Rule 2 was substituted by G.O. Ms. No. 275, C.T.& R.E., dated the 16th July 1997.]

Any party to a proceeding pending before the Government, the-Commissioner, the Joint Commissioner, the Deputy Commissioner or an Assistant Commissioner desirous of inspecting any record of such proceeding or any other proceeding connected therewith, may apply to the Secretariat to the Government of the Department concerned or to the Commissioner, the Joint Commissioner, the Deputy Commissioner or the Assistant Commissioner, as the case may be, for permission to inspect such record.]

3.

Every application for such inspection shall specify the number of the proceeding and shall contain all information necessary to identify the records required for inspection. It shall also state the purpose for which inspection is sought.

4.

It shall be in the discretion of the authority concerned to grant or with-hold permission for inspection of all or any part of the record required for inspection.

5.

If permission for inspection is granted, the inspection shall be made in the presence of an officer authorised in this behalf and a fee of Re. 1 in cash shall be paid for each day or part of a day spent on inspection.

6.

When the record of the proceeding which is sought to be inspected is not pending and relates to a previous year, a search fee of Re. 1 shall be paid in cash.

7.

These rules shall not apply to inspection by a party to a proceeding under Chapters V, VI and VII of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959).

8.

Any person having interest may apply to the Secretary to Government of the Department concerned, to [the Commissioner, Joint Commissioner, Deputy Commissioner or an Assistant Commissioner as the case may be]

[Substituted by G.O. Ms. No. 275, C.T.& R.E., dated the 16th July 1997.]

, for permission to inspect the record of any proceeding which has been disposed of, whether he was a party thereto or not. Such application shall be supported by an affidavit stating his interest and specifying the purpose for which the inspection is sought. The provisions of rules 3 to 6 shall apply to such applications.

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